



File No.: EXP202210442

RESOLUTION ON THE ARCHIVING OF PROCEEDINGS

From the proceedings carried out by the Spanish Agency for Data Protection and based on the following

FACTS

FIRST: On 06/09/2022, a written submission was received by this Agency from A.A.A. (hereinafter, the complainant), in which a complaint is made against CAIXABANK, S.A. with NIF A08663619 (hereinafter, CAIXABANK), for a possible breach of the provisions of personal data protection regulations.

The reasons on which the complaint is based are as follows:

“[...]”

FIRST.- The undersigned entered into a mortgage loan with Caixabank in May 2006. Since the deed contains abusive clauses, two ordinary judicial proceedings have been filed against the bank, which are pending a final judgment. The borrower has been depositing amounts in the Court corresponding to the installments that have accrued on account of the loan since 2016. Of the two lawsuits, the first one dating back to 2016 is pending judgment in the Supreme Court. The second was filed last April and there is still no admission order.

Caixabank, S.A. filed an enforcement proceeding against the debtor, disregarding the deposits made, which is pending an appeal in the Barcelona Court of Appeal.

SECOND.- Caixabank, S.A. has transferred the credit and all personal data of the undersigned and her parents to the Irish fund, Promotora Yellowstone Designated Activity Company, without her consent, in violation of Article 20.2.b) of the Data Protection Act, as the debt is neither liquid, nor due, nor enforceable, as both the settlement of the loan and its amount are pending the decision of the courts.

“[...]”

Along with the complaint, the following documentation is provided:

- Copy of the letter, dated 09/08/2022, signed by CAIXABANK and PROMONTORIA YELLOWSTONE DESIGNATED ACTIVITY COMPANY in which they notify the complainant of the assignment of rights of her credit to the entity PROMONTORIA YELLOWSTONE DESIGNATED ACTIVITY COMPANY.

The content states:

“Ref. Notification of assignment of credit rights.

Dear Sir/Madam,

We hereby notify you that, on June 2, 2022, CAIXABANK, S.A and PROMONTORIA YELLOWSTONE DESIGNATED ACTIVITY COMPANY entered into a contract for the sale of credit rights (formalized in a public deed on July 27, 2022, by the Notary of Madrid (...).

Therefore, if there are personal data linked to the credits in accordance with the provisions of current personal data protection regulations, we inform you that:

The data will be processed by PROMONTORIA YELLOWSTONE DESIGNATED ACTIVITY COMPANY (...).

The categories of personal data that Caixabank, S.A. has transferred to the assignee in its capacity as data controller are those linked to the sale contract, which may exclusively consist of one of the following categories:

- o Personal data such as name, address, date of birth, marital status, information about children, image;
- o Professional and employment data: such as remuneration, work performance, type of contract, etc.;
- o Identification documentation;
- o Financial information: bank account number;
- o Data related to disputes and enforcement of claims, including information related to the generation of proceedings, disputes, negotiations (...).

The company Finsoluta Spain, S.L.U. has been designated as the entity responsible for the

management and recovery of the credits and, consequently, will have access to your personal data as the data processor (...).”

- Copy of the Admission Order of the cassation appeal and the Order of arrangement of the appeal in the enforcement proceeding.

SECOND: In accordance with Article 65.4 of Organic Law 3/2018, of December 5, on Personal Data Protection and Guarantee of Digital Rights (hereinafter LOPDGDD), on 10/10/2022, this complaint was forwarded to CAIXABANK for it to analyze and inform this Agency within one month of the actions taken to comply with the requirements set forth in data protection regulations.

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The transfer, which was carried out in accordance with the regulations established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), was recorded on 10/10/2022 as evidenced by the acknowledgment of receipt in the file.

On 11/10/2022, this Agency received a response letter in which the following is stated:

“[...]

1. The decision made regarding this claim. According to the provisions in the claim submitted by the client, he considers that CaixaBank has communicated his personal data and that of his parents to a third entity without his consent as a result of the assignment of the credit of which they were holders. In this regard, as indicated in the letter sent to the client on August 9, 2022, according to the provisions of Article 347 of the Commercial Code, the client's consent is not necessary for the assignment of the credit:

“Article 347 Non-negotiable commercial credits or bearer credits may be transferred by the creditor without the need for the debtor's consent, it being sufficient to notify the debtor of the transfer. The debtor shall be obliged to the new creditor by virtue of the notification, and from the moment it takes place, no payment shall be deemed legitimate except that made to this creditor.”

Thus, the only requirement for the assignment of the credit is the notification of such transfer. The notification was made through the aforementioned letter dated August 9, 2022, which the claimant himself submits to the procedure as Annex number 2.

Therefore, it is concluded that the communication of the credit, as well as the communication of the debtors' data, is legitimate and lawful, so no specific decision is required within the framework of this claim.

2. Report on the causes that have motivated the incident that originated the claim.

The origin of the claim is the lack of knowledge on the part of the claimant of the regulations that empower CaixaBank to assign its credit without his consent. Therefore, since this is not an incident, it is not appropriate to prepare a report regarding the causes that have originated it.

3. Report on the measures adopted to prevent similar incidents from occurring, implementation dates, and controls carried out to verify their effectiveness.

In the same vein as the previous point, in this case, the reason for the claim is the lack of knowledge of the regulations that empower CaixaBank to assign the credit to a third entity without the consent of its holder. Therefore, since this is a lawful data processing that has been carried out correctly, the adoption of specific measures is not warranted.”

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THIRD: On 18/11/2022, in accordance with Article 65 of the LOPDGDD, the claim submitted was admitted for processing.

FOURTH: The General Subdirectorate for Data Inspection proceeded to carry out preliminary

investigative actions to clarify the facts in question, by virtue of the functions assigned to the control authorities in Article 57.1 and the powers granted in Article 58.1 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and in accordance with the provisions established in Title VII, Chapter I, Section two, of the LOPDGDD, being aware of the following points:

1) On 09/01/2023, this Agency received a response letter from FINSOLUTIA SPAIN, S.L. in which it attaches the necessary documentation to address the information request made on 16/12/2022.

Specifically, it provides the following:

o In relation to the acquisition of the third-party mortgage credit:

- Notarial testimony of the public elevation of the purchase contract of credit rights between CAIXABANK and PROMONTORIA YELLOWSTONE DESIGNATED ACTIVITY COMPANY (hereinafter, PROMONTORIA YELLOWSTONE). The document includes information regarding the personal data of the claimant and their parents that were transferred along with the acquisition of the credit:

Loan Number: ***LOAN.1

HOLDER: A.A.A., ***NIF.1

HOLDER: B.B.B., ***NIF.2

HOLDER: C.C.C., ***NIF.3

Property Registry: ***PROPERTY.1

- Simple note from the Property Registry Number 13 of Barcelona which shows, on one side, the registration of the ownership of the property owned by the claimant on which there is a mortgage initially registered in favor of CAIXABANK and, on the other side, as the debtor party, the claimant and their parents, as the mortgagor the claimant, and which is registered with the note: "Loan assigned to PROMONTORIA YELLOWSTONE DESIGNATED ACTIVITY COMPANY with reference to the document of the notarial testimony of the public elevation of the purchase contract of rights provided by the requested party."

o In relation to the communication to the claimant of the acquisition of the credit:

- Copy of the joint letters, dated 09/08/2022, from CAIXABANK and the acquiring party (PROMONTORIA YELLOWSTONE) regarding the assignment of the credits in which they inform the claimant and their parents that, on 02/06/2022, the assignment contract was executed.

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the credits between CAIXABANK and the acquirer, including the value of the credit assignment.

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In relation to the collection of the acquired credit:

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Copy of the email sent from a corporate email of FINSOLUTIA (***EMAIL.1) to personnel of the same entity (***EMAIL.2) and to another corporate email of this entity (***EMAIL.1) indicating the actions taken for collection from its inception on 06/09/2022 until the rest of the actions carried out by the legal team.

☐

Certificate jointly signed by two of the representatives of PROMONTORIA YELLOWSTONE DAC, stating that, as of 08/01/2023, according to judicial procedure No. ***PROCEDIMIENTO.1, there is a total outstanding balance of XXX.XXX,XX€ plus X.XXX,XX€ in interest and X.XXX,XX€ in legal costs in favor of this company.

2) On 18/01/2023, this Agency received a response letter from CAIXABANK in which it attaches the necessary documentation to address the information request made on 16/12/2022. Specifically, it provides the following:

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In relation to the acquisition of the third-party mortgage credit:

☐

Notarial deed corresponding to mortgage loan number ***PRÉSTAMO.1, owned by the claimant and two other accredited parties.

☐

Notarial testimony issued by the notary of Madrid D. D.D.D., certifying:

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The assignment of a portfolio of credits by CAIXABANK S.A. ("CaixaBank") to the entity PROMONTORIA YELLOWSTONE on date ***FECHA.1 and through public deed number X.XXX of its protocol.

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The information provided by CAIXABANK to the entity is included in section IV of the relevant notarial testimony:

Loan Number: ***PRÉSTAMO.1

HOLDER: A.A.A., ***NIF.1

HOLDER: B.B.B., ***NIF.2

HOLDER: C.C.C., ***NIF.3

Registered Property: ***FINCA.1

o

In relation to the communication to the claimant regarding the acquisition of the credit:

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Copy of the joint letters, dated 09/08/2022, from CAIXABANK and the acquiring party (PROMONTORIA YELLOWSTONE) regarding the assignment of the credits in which they inform the claimant and their parents that, on 02/06/2022, the credit assignment contract was executed between CAIXABANK and the acquirer, including the value of the credit assignment.

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In relation to the collection of the acquired credit:

☐

Copy of the document submitted to the Court of First Instance No. 25 of Barcelona requesting the corresponding procedural succession in favor of PROMONTORIA YELLOWSTONE DESIGNATED ACTIVITY COMPANY, as the new creditor of loan number ***PRÉSTAMO.1.

3) On 03/02/2023, the inspection services sent a request for information to the claimant to expand the information provided in the complaint. However, the certificate issued by Correos indicates that it was unable to carry out the postal notification of the information request to the claimant.

LEGAL GROUNDS

I

Competence and applicable regulations

In accordance with the functions conferred on each supervisory authority by Article 57.1 a), f) and h) of the GDPR and as provided in Articles 47 and 48.1 of the LOPDGDD, the Director of the Spanish Data Protection Agency is competent to resolve these investigative proceedings.

Furthermore, Article 63.2 of the LOPDGDD states: "The procedures processed by the Spanish Data Protection Agency shall be governed by the provisions of Regulation (EU) 2016/679, by this organic law, by the regulatory provisions issued for its development and, as long as they do not contradict them, subsidiarily by the general rules on administrative procedures."

II

Legitimacy of the processing of personal data

The principles governing the processing are enumerated in Article 5 of the GDPR. In this regard, paragraph 1 letter a) states: "Personal data shall be:

a) Processed lawfully, fairly, and transparently in relation to the data subject (lawfulness, fairness, and

transparency);
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(...)”

The principle of lawfulness is primarily regulated in Article 6 of the GDPR. The circumstances that allow for the lawful processing of personal data are enumerated in Article 6.1 of the GDPR:

1. Processing shall be lawful only if at least one of the following conditions is met:

- a) the data subject has given consent to the processing of their personal data for one or more specific purposes;
- b) the processing is necessary for the performance of a contract to which the data subject is a party or for the implementation of pre-contractual measures taken at the request of the data subject;
- c) the processing is necessary for compliance with a legal obligation to which the data controller is subject;
- d) the processing is necessary to protect the vital interests of the data subject or of another natural person;
- e) the processing is necessary for the performance of a task carried out in the public interest or in the exercise of official authority vested in the data controller;
- f) the processing is necessary for the purposes of the legitimate interests pursued by the data controller or by a third party, except where such interests are overridden by the interests or fundamental rights and freedoms of the data subject which require protection of personal data, in particular when the data subject is a child.

The provision in point f) of the first paragraph shall not apply to processing carried out by public authorities in the performance of their tasks.”

In this regard, Recital 40 of the GDPR states that “For processing to be lawful, personal data must be processed with the consent of the data subject or on another legitimate basis laid down by law, whether in this Regulation or by virtue of other Union or Member State law to which this Regulation relates, including the necessity of complying with a legal obligation to which the data controller is subject or the necessity of performing a contract to which the data subject is party or for the taking of steps at the request of the data subject prior to entering into a contract.”

III

Conclusion

On 06/09/2022, a complaint was received by this Agency against CAIXABANK for having transferred personal data of the complainant and their parents to the entity PROMONTORIA YELLOWSTONE DESIGNATED ACTIVITY COMPANY, without their consent, as a result of the sale of the credit of which they were holders.

The documentation provided in the file records the existence of a contractual relationship between the complainant and CAIXABANK by virtue of the Public Notarial Deed of granting an open credit with mortgage guarantee signed before the Notary of the Illustrious Notarial College of Catalonia, Mr. E.E.E., on 23/05/2006.

Subsequently, CAIXABANK transferred the credit referred to in the previous paragraph to PROMONTORIA YELLOWSTONE, after signing a credit portfolio transfer contract, formalized on 27/07/2022. As a result of this transfer, and according to the notarized testimony of the Notary of the Illustrious College of Notaries of Madrid, Mr. D.D.D., the data communicated regarding the complainant and their parents were as follows:

- Loan number: ***LOAN.1.
- Holder: A.A.A., ***NIF.1.
- Holder: B.B.B., ***NIF.2.
- Holder: C.C.C., ***NIF.3.
- Property Registry: ***PROPERTY.1.

In this regard, CAIXABANK has informed that the transfer of the credit and, consequently, of the

personal data, occurred based on the provisions of the Commercial Code, which in its Article 347 only requires that this action be communicated to the debtors, in this case, to the complainant and their parents. Thus, as evidenced in the file, on 09/08/2022, CAIXABANK along with PROMONTORIA YELLOWSTONE communicated to the affected parties the transfer made and its consequences, especially regarding the protection of personal data.

The GDPR requires that the processing of personal data be lawful, which must be based on one of the legal bases listed in its Article 6.1. In light of the documentation in the file, it seems evident that the processing of personal data carried out by the entity PROMONTORIA YELLOWSTONE is covered by the circumstance detailed in point b) of the aforementioned provision. The transfer of the mentioned credit entails the subrogation of PROMONTORIA YELLOWSTONE in the rights and obligations of CAIXABANK towards the complainant; thus, the processing of the personal data of the complainant and their parents is necessary for the execution of the mortgage loan.

Therefore, based on the information provided in the previous paragraphs, no evidence has been found to support the existence of an infringement within the jurisdiction of the Spanish Agency for Data Protection, as the processing of personal data without a legitimate basis has not been substantiated. In accordance with the above, the Director of the Spanish Agency for Data Protection, IT IS AGREED: FIRST: TO FILE the present proceedings.

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SECOND: NOTIFY this resolution to CAIXABANK, S.A. and to the claimant.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure as provided by Article 114.1.c) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations, and in accordance with the provisions of Articles 112 and 123 of the aforementioned Law 39/2015, of October 1, the interested parties may, optionally, file a motion for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file an administrative contentious appeal before the Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and Section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Administrative Contentious Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

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